

Application Filed: _____

Name of Applicant: _____

Address: _____

1. ☐ Application to withdraw duly executed and properly acknowledged?
2. ☐ Application accompanied by "evidence of due authority"? (§1070 Ins. Code) (Resolution of Board of Directors)
3. ☐ Filing fee per §§1070.5 and 1076?
4. ☐ Publication fee of \$1100.00 per §1071?
5. Reinsurance and Assumption Contracts:
 - (a) ☐ A duly executed duplicate original?
 - (b) ☐ If not, is it certified to be a true copy of the actual contract by the corporation secretary of the assuming insurer (preferably) and attested by its corporate seal?
 - (c) ☐ Does it confer upon ceding insurer's California policyholders a right of direct action against the reinsurer? (§1071.5 id.)
 - (d) ☐ Does it in effect assume liability for taxes payable by ceding insurer? (Not necessary if such liabilities are otherwise cared for) (§1071.5 id.)
 - (e) ☐ Does it result in discharging all liabilities of the withdrawing insurer to residents of this State? (§1071.5 id.)
6. Commitment made and filed in triplicate to make timely filing of:
 - (a) ☐ Annual Statement (in triplicate) for the calendar year during any part of which Applicant last held a valid California Certificate of Authority? (§§900 and 900.7 id.)
 - (b) ☐ California Annual Tax Return for the calendar year, and quarterly Prepayment Tax Return for any calendar quarter, during any part of which Applicant last held a valid California Certificate of Authority?
 - (c) ☐ Retaliatory Tax Information Return (by foreign or alien insurers only) for the calendar year during any part of which Applicant last held a valid California Certificate of Authority?
 - (d) ☐ Ocean Marine Tax Report?
 - (e) ☐ And to pay all taxes when due and any penalties found due and owing after receipt and audit of all lawfully required returns?

STATE OF CALIFORNIA – DEPARTMENT OF INSURANCE
INSURER WITHDRAWAL CHECKLIST

7. ☐ Applicant has no outstanding invoices in Accounting
Contact Accounts Receivable at (916) 492-3242 or arbilling@insurance.ca.gov
8. ☐ Applicant's last current Certificate of Authority surrendered for cancellation? (§1071 id.)
9. ☐ Notice of Application to Withdraw prepared and mailed to newspapers on
10. ☐ Affidavits of publication received
11. ☐ Notices of Withdrawal prepared and mailed to newspapers on
12. ☐ Effective date of withdrawal entered in Docket; in monthly summary
13. ☐ Original and document file copy of Certificate of Authority canceled. Entry made in register
14. ☐ Affidavits of publication received.
15. ☐ Does reinsurer have adequate bond or deposit (Ins. Code §11696) to cover any workman's compensation business reinsured?
16. ☐ Applicant has (or had):
W. C. Bond \$_____; canceled
Deposit in lieu \$_____; withdrawn
17. ☐ Letter written to company
(a) Notifying of date withdrawal completed;
(b) Certificate of Authority canceled, company now unlicensed;
(c) Returning canceled Certificate of Authority;
(d) Warning company of franchise tax (enclosing copy of §2112 Corporations Code);
(e) Mentioning status of bonds or deposits; (if deposits, send copy to Accounting Officer).
18. ☐ Docket entry completed
19. ☐ Transfer withdrawal file to Central Files